

Multiple Representation, Landlord Acknowledgement & Consent Disclosure

LANDLORD: (the "Landlord")

BROKERAGE: (the "Listing Brokerage")

REAL PROPERTY: (the "Property")

DEFINITIONS AND INTERPRETATIONS: For the purposes of this Disclosure Form: "Landlord" includes seller, vendor, and lessor or a prospective Landlord, seller, vendor, and lessor, a "tenant" includes buyer, purchaser, and lessee, or a prospective buyer, purchaser, and lessee, and a "real estate board" includes a real estate association. A Lease shall be deemed to include any rental agreement, sub-lease or renewal of a lease. A purchase shall be deemed to include the entering into any agreement to exchange, or the obtaining of an option to purchase which is subsequently exercised. This Disclosure Form shall be read with all changes of gender or number required by the context.

MULTIPLE REPRESENTATION - DUTIES AND SERVICES: The Landlord understands and acknowledges that the Listing Brokerage or a designated representative of the Listing Brokerage must be impartial when representing both the Landlord and the tenant and equally protect the interests of the Landlord and tenant. The Landlord understands and acknowledges that when representing both the Landlord and the tenant, the Listing Brokerage shall have a duty of full disclosure to both the Landlord and the tenant.

However, the Landlord further understands and acknowledges that the Listing Brokerage shall not disclose:

- that the Landlord may or will accept less than the listed price, unless otherwise instructed in writing by the Landlord;
- that the tenant may or will pay more than the offered price, unless otherwise instructed in writing by the tenant;
- the motivation of or personal information about the Landlord or tenant, unless otherwise instructed in writing by the party to which the information applies or unless failure to disclose would constitute fraudulent, unlawful or unethical practice;
- the price the tenant should offer or the price the Landlord should accept;
- the Listing Brokerage shall not disclose to the tenant the terms of any other offer; and
- the Listing Brokerage shall not disclose to the Landlord the terms of any other offer by the tenant.

However, it is understood that factual market information about comparable properties and information known to the Listing Brokerage concerning potential uses for the property will be disclosed to both Landlord and tenant to assist them to come to their own conclusions.

The Listing Brokerage shall not be appointed or authorized to be agent for either the Landlord or the tenant for the purpose of giving and receiving notices where the Listing Brokerage or the designated representative represents both the Landlord and the tenant (multiple representation). In the event that the Listing Brokerage has entered into or enters into a tenant representation agreement with a prospective tenant for the Landlord's Property, the Listing Brokerage requires the Landlord's written consent for the Listing Brokerage or a designated representative of the Listing Brokerage to represent both the Landlord and the tenant for the transaction at the earliest practicable opportunity and in all cases prior to any offer to lease being submitted or conveyed.

 **MULTIPLE REPRESENTATION AND BROKERAGE REPRESENTATION:** The Landlord hereby acknowledges that the Listing Brokerage may be entering into or proposes to enter into tenant representation agreements with tenants who may be interested in leasing the Landlord's Property and requires the Landlord's written consent to represent more than one client in the same trade.

 **MULTIPLE REPRESENTATION AND DESIGNATED REPRESENTATION:** The Landlord hereby acknowledges that the Listing Brokerage may be entering into or proposes to enter into tenant representation agreements with tenants who may be interested in leasing the Landlord's Property where the designated representative represents both the Landlord and the tenant and requires the Landlord's written consent to represent more than one client in the same trade.

 **MULTIPLE REPRESENTATION AND DESIGNATED REPRESENTATION AND BROKERAGE REPRESENTATION:** The Landlord hereby acknowledges that the Listing Brokerage may be entering into or proposes to enter into tenant representation agreements with tenants who may be interested in leasing the Landlord's Property where the designated representative represents the Landlord and the Listing Brokerage represents the tenant or where the Listing Brokerage represents the Landlord and the designated representative represents the tenant and requires the Landlord's written consent to represent more than one client in the same trade.

COMMENTS:

CONSENT FOR MULTIPLE REPRESENTATION

With their initials the Landlord consents to the Brokerage or designated representative representing more than one client in the same transaction.

 **INITIALS OF LANDLORD(S)**

..... (Authorized to bind the Listing Brokerage) (Date) (Name of Person Signing)

THIS MULTIPLE REPRESENTATION, LANDLORD ACKNOWLEDGEMENT & CONSENT DISCLOSURE FORM HAS BEEN READ AND FULLY UNDERSTOOD BY ME, I ACCEPT THE TERMS OF THIS MULTIPLE REPRESENTATION, LANDLORD ACKNOWLEDGEMENT & CONSENT DISCLOSURE FORM.

SIGNED, SEALED AND DELIVERED I have hereunto set my hand and seal:

..... (Signature of Landlord) (Seal) (Date)

..... (Signature of Landlord) (Seal) (Date)